

Terms and Conditions

Last updated: 4th October 2025

1. General

1.1 These Terms and Conditions apply to all business relationships between **Medford Technologies** and our customers.

1.2 Unless otherwise agreed in writing, these Terms apply exclusively. Customer's differing or additional terms are not recognized, unless expressly confirmed by us in writing.

1.3 These Terms also apply to all future business transactions with the Customer.

2. Offer, Conclusion of Agreement, and Content of Agreement

2.1 Our offers are subject to change and non-binding unless expressly designated as binding.

2.2 An agreement becomes effective only upon our written order confirmation or upon commencement of performance.

2.3 Information regarding dimensions, weight, performance, or other specifications is approximate unless expressly guaranteed in writing.

2.4 Amendments or changes to an agreement must be made in writing.

3. Delivery

3.1 Delivery periods and dates are binding only if expressly confirmed by us in writing.

3.2 We reserve the right to make partial deliveries where reasonable.

3.3 Delivery obligations are subject to the timely and proper fulfillment of the Customer's cooperation duties.

3.4 Delivery is completed when the goods are handed over to the carrier.

3.5 Risk of accidental loss or damage passes to the Customer upon dispatch

4. Delivery Delays

4.1 In the event of force majeure or other circumstances beyond our reasonable control (e.g., natural disasters, pandemics, strikes, regulatory restrictions, or supply chain disruptions), the delivery period shall be extended accordingly.

4.2 If such delays persist for more than ninety (90) days, either party may withdraw from the contract without liability for damages.

4.3 Claims for damages due to delivery delays are excluded, unless caused by willful misconduct or gross negligence.

5. Prices

5.1 Unless otherwise agreed, our prices are ex-works and exclude taxes, customs duties, insurance, packaging, and shipping costs.

5.2 We reserve the right to reasonably adjust prices in case of significant cost increases (e.g., raw materials, logistics, regulatory requirements).

5.3 All invoices are issued in the agreed currency.

6. Payment Terms

6.1 Payment is due within the period specified in the invoice, without deduction, unless otherwise

6.2 The Customer may offset claims only if they are undisputed or legally binding.

6.4 We reserve the right to withhold deliveries until outstanding payments are settled.

7. Detention of Title

7.1 We retain ownership of the delivered goods until full payment of all outstanding claims has been received.

7.2 The Customer shall handle goods with care and insure them adequately until ownership transfers.

7.3 Resale or pledging of goods subject to retention of title is permitted only with our prior written consent.

8. Warranty

8.1 We warrant that our goods are free from material defects and conform to agreed specifications at the time of transfer of risk.

8.2 Warranty claims must be notified in writing without undue delay and no later than 30 days after receipt.

8.3 Defective goods will, at our discretion, be repaired or replaced.

8.4 Warranty does not apply to normal wear and tear, improper use, or modifications by the Customer.

8.5 Any further liability for defects is excluded unless required by mandatory law.

9. Liability

9.1 We shall be liable only for direct damages caused by willful misconduct or gross negligence.

9.2 Liability for indirect or consequential damages (e.g., loss of profit, business interruption, or third-party claims) is excluded to the extent permitted by law.

9.3 Our total liability shall in no case exceed the net contract value of the goods concerned.

10. Product Liability

10.1 The Customer is responsible for the proper use of goods in compliance with applicable laws, safety standards, and regulations.

10.2 Any claims under product liability laws remain unaffected where such laws mandatorily apply.

11. Returns Policy

11.1 Returns require our prior written consent.

11.2 Customized or used goods may not be returned unless defective.

12. Intellectual Property

12.1 All intellectual property rights relating to our goods, designs, or documentation remain our exclusive property, unless expressly agreed otherwise.

12.2 The Customer may not copy, modify, or reproduce our goods or documentation without prior written consent.

13. Unforeseen Obligations (Force Majeure)

13.1 We shall not be liable for non-performance due to events beyond our control, including but not limited to natural disasters, pandemics, acts of government, war, supply chain disruptions, or regulatory delays.

14. Dispute Resolution

14.1 The parties shall first attempt to resolve disputes through good-faith negotiations.

15. Final Provisions

15.1 If any provision of these Terms is held invalid, the remainder shall remain in effect.

15.2 No waiver of any breach shall be deemed a waiver of future breaches.

15.3 These Terms constitute the entire agreement between the parties and supersede all prior agreements.